



POLICE DEPARTMENT

November 16, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202203510 (Incident Date: May 21, 2022) regarding Lieutenant Brian Klarman,
Tax No 946506 (DADS No. 2023-29078)

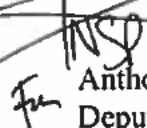
Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202203510, pertaining to Lieutenant Brian Klarman. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Lieutenant Klarman would be detrimental to the Police Department's disciplinary process.

While the Police Commissioner agrees with the CCRB's substantiation of the allegations in this matter, the Police Commissioner does not agree that charges and specifications are the appropriate form of penalty. Lieutenant Klarman acted in good faith when responding to a suicidal, emotionally disturbed person, and as such, his actions would be best addressed by a command discipline. The Body Worn Camera clearly depicts Lieutenant Klarman entering a volatile and chaotic scene, which he attempted to diffuse. The penalty days associated with the command discipline will reflect mitigated penalties, considering Lieutenant Klarman's positive, lengthy tenure with the Department and lack of any formal disciplinary history. Further, the penalties associated with the improper frisk, discourtesy, and failure to provide a Right to Know Business Card will run concurrently, as these allegations arose from a single incident.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CORB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day in connection with the substantiated allegations.

Sincerely,


Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

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100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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ARVA RICE
INTERIM CHAIR

November 20, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202203510 (Incident Date: April 13, 2022) involving Lieutenant Brian Klarman, Tax No. 946506 (DADS No. 2023-29078)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated November 16, 2023. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”).

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you determined that you would direct the issuance of a Schedule “A” Command Discipline with the forfeiture of one (1) vacation day to LT Klarman in connection with the substantiated allegations, citing the case’s exigent circumstances, LT Klarman’s acting in good faith, and his positive, lengthy tenure with the Department.

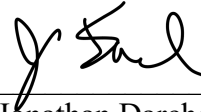
The CCRB disagrees with the Police Commissioner’s determination that LT Klarman’s conduct warrants mitigated penalties. As an initial matter, LT Klarman’s role as the highest-ranking officer on the scene makes his conduct more serious, where he failed to lead by example or effectively hold subordinates accountable.

During the incident, LT Klarman loudly remarked, “This is annoying. Fucking irritating” in front of numerous assembled officers and the civilian who made the 911 call. Moreover, as the investigation noted, even when confronted with his remarks captured on body-worn camera, LT Klarman denied recalling making such remark. Additionally, LT Klarman frisked a civilian after the exigencies associated with the incident had largely expired: the fourteen officers present had already separated the two parties in a dispute; the frisked civilian, standing in a hallway surrounded by officers, had already been frisked by a subordinate officer. Furthermore, LT Klarman admitted to the investigation that he did not believe the civilian was armed nor was he suspected of criminal activity. Moreover, LT Klarman failed to provide a business card, and in

his explanation to the investigation, demonstrated a concerning misunderstanding of the Right to Know Act, claiming he was not required to at all. Finally, while the Commissioner cites a positive employment history, LT Klarman's 15-year tenure with the Department features a notable lack of commendations of any sort. For all of these reasons, LT Klarman's response to the incident does not merit the mitigated penalty.

The CCRB respectfully requests that you permit the CCRB to continue the disciplinary process against LT Klarman. If, in the course of the disciplinary process, LT Klarman would accept responsibility for their actions the CCRB would consider that a factor towards resolving the disciplinary process with the mitigated penalty.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J. Darche", is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 21, 2023

Re: CCRB Case No. 202203510 (Incident Date: May 21, 2022) regarding Lieutenant Brian Klarman, Tax No 946506 (DADS No. 2023-29078)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated November 20, 2023, concerning the Civilian Complaint Review Board ("CCRB") case involving Lieutenant Brian Klarman, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Lieutenant Brian Klarman, for the reasons expressed in my November 16, 2023 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Lieutenant Klarman be issued a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day, in connection with this matter.

Sincerely,


Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office